

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: December 6, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

SUPPLEMENTAL BRIEFING ORDER

On December 4, 2024, the parties filed a Joint Status Report [Dkt. 126] pursuant to my November 25, 2024 Order [Dkt. 125]. Complainant Samsung Electronics America, Inc. (“SEA”) states that it took the deposition of Mr. Yoon-Jai “Mark” Lee by Zoom on November 26, 2024. Joint Status Report [Dkt. 126] at 2. SEA states that it considers the subpoena issued to Mr. Lee’s current employer, SeaLead Shipping USA, Inc., moot and the subpoena issued for Mr. Lee’s deposition satisfied and will take no further action related to enforcement of these subpoenas. Id.

The parties disagree as to the necessity of supplemental briefing based on Mr. Lee’s testimony. Respondent SM Line Corporation states that it intends to file a motion to supplement its brief to include Mr. Lee’s testimony on December 18, 2024. Id. at 4-5. SEA maintains that Mr. Lee’s testimony is not “meaningfully probative” and that no supplemental briefing is justified. Id. at 2.

I allowed SEA to pursue the testimony of Mr. Lee and to subpoena his employer for information on his whereabouts after the close of briefing because of SEA’s representations, supported by the testimony of other SM Line employees in the record, that it was central to the case. See Order [Dkt. 115] and Order [Dkt. 120]. I have already determined that Mr. Lee’s testimony is potentially relevant to this case, and so there is no need to expend time and resources with motions practice over whether supplemental briefing is appropriate. I will allow SM Line to file a supplemental brief, after which SEA will have time for a response – if Mr. Lee’s testimony turns out to be immaterial, as SEA contends, then the burden of stating that position in a response to SM Line’s filing will be minimal.

It is hereby:

ORDERED that SM Line must file its supplemental brief no later than **December 20, 2024**. The supplemental brief and any accompanying supplemental appendix must be limited to new evidence offered at Mr. Lee's deposition. It is further

ORDERED that SEA will file its supplemental brief no later than **January 7, 2025**. This brief and any accompanying supplemental appendix must be similarly limited to the new evidence offered at Mr. Lee's deposition.

ALEX

CHINTELLA

Digitally signed by ALEX
CHINTELLA

Date: 2024.12.06
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Alex M. Chintella

Administrative Law Judge